Saturday, January 13, 2024

Committee Reports

CMA Board Meeting

Coolfont Mountainside Association

Coolfont Mountainside Association
Board of Directors Meeting
January 13, 2024, 10:00am
AGENDA

I. Roll Call – Proof of Quorum

II. Election of Officers

III. Approval of Minutes – December 11, 2023

IV. Reports of Officers and Directors
- a. President's Report
- b. Vice President's Report
- c. Treasurer's Report
- d. Directors' Reports

V. Site Manager Report, Stephanie Rebant, MHRE

VI. Committee Reports & Chairs

a.	Communications	Dawne Holz	Previously distributed
b.	DACC	Gary Farmer	No Update Provided
c.	Finance	Dawne Holz	Previously distributed
d.	Firewise	Mark/Shelley	No Update Provided
e.	Neighborhood Watch	Steve Katz	Acknowledged No Updates
f.	Recreation	Chris Peabody	Previously distributed
g.	Social	Jack Wennersten	No Update Provided
h.	Welcome	Rosemary Bigelow	Previously distributed

VII. Task Force Reports & Chairs

a.	Barn	Vacant	No Update Provided
b.	Sports Courts	Vacant	Previously distributed
	a. Survey – Update and Next Steps		
c.	Bus. Use of Property	Tom Holz	Previously distributed
	a. Resale Package – HomeWise Docs Service Agreement (motion)		

VIII. New Business
- a. Appointment of Committee Chairs and Liaisons for 2024
- b. Appointment of Task Force Chairs and Liaisons for 2024
- c. Monthly Board Meetings Schedule for 2024

IX. Old Business
- a. Barn – Update and Next Steps
- b. Policies In Progress
  - Violation Enforcement Policy
  - Noise Policy
- c. Site Manager Contract Increase
- d. Project List

Next Meeting – February TBD, 2024, time?

X. Owners Forum

XI. Executive Session (held prior to open session)

a. Delinquency Report
b. Payment Plan Requests
c. Violations

XII. Adjournment

Next Meeting – February TBD, 2024, time?

Coolfont Mountainside Association
Board of Directors Meeting – January 13, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 12/31/23 were provided and covered 100% of the 2023 budget year. Income total is 103.7% of budget. Expenses are 101.2% of budget. Currently, the 2023 "bottom line" shows a Net Income of $1,796.99. However, there may be a few small invoices from 2023 still to pay. This equates to 0.7% variance from the 2023 budget – excellent financial management by the board in 2023.

Meetings

There has been no Finance Committee meeting since the last board meeting.

Delinquent Accounts

There are currently no delinquent accounts.

Updates

Updates include details of attached reports as of the end of the previous month.

December/January

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- Finance Charge rate (interest rate) updated to 11.5% for 2024 (Prime 8.5% + 3%)
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (CMA is based on IRS business mileage rate). Updated Neighborhood Watch mileage spreadsheet with new rate.
- Invoices for 2024 Annual Assessments were sent out on 1/5/24. About 27% of owners have paid to date. Reminders will go out on/about 1/25/24.

MOUNTAIN HOME REAL ESTATE, LLC
64 South Green Street
Berkeley Springs, WV 25411
Phone: (304) 258-0410

MONTHLY STATUS REPORT FOR December 2023
As of: 01/09/24

VIOLATION COMPLAINTS:

- Please refer to violation log, minor trash issues, and construction vehicles blocking roadway, all corrected.
- Notified several owners of trash issues, owners rectified all trash issues in a timely manner.

INSPECTIONS:

- Victor Stevens rides through almost daily (early morning) to check that roads are clear and inspects for any major issues, additional inspections: 11/27, 11/28, 11/29, 12/01
- Eric Whited, Stephanie Rebant or Mountain Home Real Estate Staff conducted inspections on 12/7, 12/15, 12/20
- Ryan Rebant conducted plowing inspection 01/07/24
- Brian Yost conducted road inspection for 2-3 inches of snow 01/09/27

Weekly Inspection Summary of Completed Tasks:

Eric Whited

- Gazebo:
  - Wiped down benches
  - Refilled CMA Trail Maps
  - Picked up additional maps from Morgan Messenger
- Barn:
  - Main Floor Leaf blew
  - Bathrooms (Floors swept, cobwebs knocked down, toilets cleaned)
  - Backroom (Floors swept, cobwebs removed)
  - Wiped out bathrooms (winterized since 2022)
  - Leaf blew walkways and exterior
- CMA Office:
  - Leaf Blew around exterior
  - Checked office (swept walls, floors, baseboards, windows, etc. are cleaned and no repairs are needed.)
  - Run the water in the bathroom to prevent dry tap.
  - Cleaned bathroom sinks. cabinets, toilets, showers, and emptied dehumidifier.
  - Leaf blew around pool area and grounds
  - Removed trash

    - Right bathroom winterized since November 2023
- Tennis Courts:
    - Leaf Blew tennis courts.
    - Checked trash box for trash.
    - Checked and marked any dangerous trees.
- Pool Area
    - Leaf blew grounds around pool area
- Playground
    - Checked playground and playground equipment
- South Pump House:
    - Emptied Trash
    - Swept floors and walls
    - Wiped down shelves, ensured drain was clear.
    - Leaf blew around the exterior.
- Checked all CMA roads. (Looking for any issues with dangerous trees, violations, or trash)
- Communication. Always assisting owners with any questions that enhance or help maintain the community, feedback about the community facilities or inspect any reports of problems.
- Community Patrols. Take their reports and feedback seriously and follow up and work with community patrols for any support they need.

Roads Were Checked:

- Brian Yost works 1-2 days monthly to maintain the roads the focus for December 2023 was to clean the roads and ditches of leaves and debris
  11/28 - Ditches and leaves were cleaned Dogwood Lane, Cardinal Lane and Cardinal Court
  11/29 - Blew leaves on Bobcat Drive:
  11/30 - Ditches cleaned on Bluebird Lane
  12/1 - Ditches and leaves cleared on Salmon Lane - Wintergreen Way
  12/4 - Ditches and leaves cleared on Wintergreen Way
  12/5 - Ditches cleaned and leaves blew
  12/6 - Ditches cleaned Whippoorwill - Woodpecker
  12/7 - Ditches cleaned and leaves removed w/trailer (3 hours)
  12/7 - Ditches cleaned and leaves blown (2) hours
  12/8 - Leaves blown
  12/8 - Leaf cleanup w/Tractor
  12/11 - Leaf cleanup w/Tractor - Bobcat Way, Mountainside Loop
  12/13 - Ditch cleanup Warbler's Way, Magpie Place
  12/14 - Clean ditches
- Brian Yost marked all speed bumps and major ditches with a steel pole and reflector to prevent road damage from snow removal

BUSINESS MATTERS/OBLIGATIONS THAT MAY REQUIRE BOARD ATTENTION:

PROPOSALS/VENDOR/CONTRACTOR ISSUE:

- Brian Yost is working on cutting up and removing dead trees for no charge to CMA, he will sell for firewood

Tennis Courts:

- Standing by for providing assistance or support for CMA board to provide oversight for local excavator when plan of action is decided
- Ensuring mailbox area is safe and accessible at conclusion of inclement weather

Trails:

- 12/12 - Brian Yost - cut up tree White Trail

Barn:

- Waiting for decision from Barn Committee to support any barn improvements
- Victor Stevens - Alarm reset 12/9/23:
- Multiple late night and early morning barn alarm calls by Stephanie Rebant - barn roof in bathrooms are leaking water bad and shorting out alarm sensor, new alarm sensor was ordered
- We will be cutting power to the barn due to water leaks in the walls, waiting for Glessner to shut off alarm
- Victor Stevens - met with Glessner Alarm - removed bad sensor, patched roof leak (will not hold) 12/14

Other:

Community Water System:

- Provide full support and inspection to ensure water operations personnel can access facility areas

Monthly Status Report:

- Notified CMA google group for snow removal options or owners.
- Notified CMA google group for 911 addressing departments request of house number being posted for each property in case of emergency.
- Conducted rehearsals for snow removal, provided blown up maps for drivers

Questions / Discussion Points for CMA Board:

- Any follow up taskings for tennis courts or barn task force
- As soon as Glessner Alarm disconnects the alarm, electric will be shut off to the barn, barn leaks and roof are worsening
- Will be working with Brian Yost and Casey Petoney for a road improvement plan
- Cinders will be provided by snow removal contractor because there is no way to load the cinder truck on site at CMA unless we pay someone by the hour to have a tractor with bucket on hand
- With the heavy snow and rain, Brian Yost may have some road repair work to conduct

COOLFONT MOUNTAINSIDE ASSOCIATION

COMMUNICATIONS COMMITTEE REPORT

BOARD OF DIRECTORS REPORT – JANUARY 13, 2024

Submitted by Dawne Holz *Information as of January 9, 2024*

SOCIAL MEDIA

Facebook: 106 members. Dawne Holz, Admin

- Rich Croce is second Admin

Google Group: 215 subscribers. Cindy Van Meter is Admin with Dawne Holz as backup.

- Looking for secondary Admin, email to Google Group, no takers yet

NEW OWNERS

- K-17 Israel/Markus

WEBSITE

Admins: Dawne Holz, Jefferson Stovall, Travis Martz

Jefferson Stovall is selling his CMA property. We could use a volunteer to help with the network/hosting portion of the website management.

CONTENT

- Updated community map with 2024 version
- Membership Directory updates (2)
- Posted 1/13/24 meeting information (post and event)

SOFTWARE UPDATES

- Updated one theme

Date Received	Lot #	Name	Phone	Email	Description	Status	Entered by	Reviewed by	Date Reviewed	Completed by	Date Completed	Notes
01/20/2023	K-10	Chaney/Buchanan	410-489-9945	rhbuchanan@verizon.net	Replace Roofing	Approved	Dawne Holz	Gary Farmer	01/24/2023	Gary Farmer	01/24/2023	Replacing with approx same color, 3 tab or architectural
02/05/2023	I-1	Lynn	540-359-1140	hflynn02@outlook.com	Remove dead tree	Approved	Dawne Holz	Steph Rebant	02/06/2023	Steph Rebant	02/06/2023	No application required
02/12/2023	N-1	Kyle & Mary Leonard	850-544-7852	kza1438aryan@gmail.com	Remove 2 dead trees	Approved	Dawne Holz	Steph Rebant	02/12/2023	Steph Rebant	02/12/2023	No application required
02/12/2023	H-7	Anna Connolly	703-244-0970	amc2662@gmail.com	Tree Removal	Approved	Dawne Holz	Steph Rebant	02/15/2023	Steph Rebant	02/15/2023	No application required, 3 Trees at rear of house.
02/27/2023	R-3	Erfan Zayed Raha Abduwayit	703-635-4332	Jurat.Erfan@gmail.com RAbduwayit@gmail.com	Roof replacement	Approved	Gary Farmer	Gary Farmer	02/28/2023	Gary Farmer	02/28/2023	Replacing existing roof. Contractor's estimate supplied with application. Material sample supplied upon request.
03/24/2023	K-6	Justus Getty	301-848-8017	justusgetty@gmail.com	Paint Exterior	Approved	Dawne Holz	Gary Farmer	06/03/2023	Gary Farmer	06/03/2023	Exterior colors are compliant.
04/07/2023	K-6	Justus Getty	301-848-8017	justusgetty@gmail.com	Roof replacement	Approved	Gary Farmer	Gary Farmer	04/10/2023	Gary Farmer	04/10/2023	Replacing existing roof, gutters, and downspouts
04/05/2023	Q-5	Shelley Drasal	443-802-5647	shelleydrasal@gmail.com	Paint foundation	Approved	Gary Farmer	Gary Farmer	04/11/2023	Gary Farmer	04/11/2023	Painting existing house foundation walls
05/11/2023	D-1	Travis Martz	240-426-5675	travis@martzlegal.com	Stain Exterior, Paint Trim	Approved	Dawne Holz	Gary Farmer	06/27/0223	Gary Farmer	06/27/2023	Restaining house same color. Advised no application needed for same color. Owner advised "white" not permitted for trim. Owner will submit alternate trim color.
05/15/2023	Q-5	Shelley Drasal	443-802-5647	shelleydrasal@gmail.com	Replace Decking	Approved	Dawne Holz	Gary Farmer	05/23/2023	Gary Farmer	05/23/2023	Application reviewed and approved.
05/18/2023	K-6	Justus Getty	301-848-8017	justusgetty@gmail.com	Replace existing hardscaping	Approved	Gary Farmer	Gary Farmer	06/04/2023	Gary Farmer	06/04/2023	Replace patio tiles and retaining walls.
06/21/2023	F-2	Valerie Creason	703-409-7728	valerie.creason@gmail.com	Tree Removal	Approved	Dawne Holz	Steph Rebant	06/28/2023	Steph Rebant	06/28/2023	Steph reviewed marked trees, approved
07/10/2023	N-5	Gary Farmer	443-758-7318	garyleefarmer@gmail.com	Trim Paint Color	Approved	Dawne Holz	Dawne Holz	07/10/2023	Dawne Holz	07/10/2023	Cabot brand Spanish Moss
07/12/2023	A-1	Amy Dubois	540-533-2721	akgray66@gmail.com	Replace Roof Shingles	Approved	Dawne Holz	Dawne Holz	07/14/2023	Dawne Holz	07/14/2023	Approved shingle color
07/27/2023	F-1	Dawne Holz	703-362-6727	dawneholz@gmail.com	Tree Removal	Approved	Dawne Holz	Gary Farmer	08/09/2023	Gary Farmer	08/10/2023	Approved removal of tree leaning threateningly.
08/15/2023	K-3	Marina Farias & Yuri Soares	202-841-0061\703-402-2515	marinasfarias@yahoo.com	Paint Color Screen Doors\Trim	Approved	George Drasal	George Drasal	08/17/2023	George Drasal	08/17/2023	Approved Door & Trim Color
09/15/2023	C-3	Ian Joseph	202-215-8650	ijoseph99@gmail.com	New Construction	Received	George Drasal	George Drasal	10/18/2023	George Drasal	10/18/2023	Approved- Past CMA 30 day deadline on our part - provided Ian with approval response.
10/23/2023	F-2	David Creason	703-409-6509	creason.dave@gmail.com	Backup Generator	Approved	George Drasal	George Drasal	10/27/2023	George Drasal	11/02/2023	Approved for Generator placement
11/27/2023	N-5	Gary Farmer	443-758-7318	garyleefarmer@gmail.com	Patio\HT Pad\Stone Wall	Approved	George Drasal	George Drasal	11/26/2023	George Drasal	11/27/2023	Approved for new pad, stone wall, Patio & Color Choices
11/27/2023	O-4	Rosemary Bigelow	240-675-3930	rosemary@mygrandmotherslace.com	Install backyard fence	Approved	Gary Farmer	Gary Farmer	11/28/2023	Gary Farmer	11/29/2023	Approved split rail wooden fence
20												

Gmail **Valerie Creason <valerie.creason@gmail.com>**

Re: Jan 13th Board Meeting - Committee Monthly Reports/Updates Needed

1 message

Chris Peabody <cpeabody61@gmail.com> Sun, Jan 7, 2024 at 11:08 AM
To: Valerie Creason <valerie.creason@gmail.com>

Hey Valerie! Happy snow Sunday.....

1. Trails

- Nothing major to report on the Trails, except we continue to clear downed trees. Stephanie is going to have her team clear one that I discovered on the Blue Trail - it's blocking the trail about 3/4 of the way to the top.

2. Sports Courts -

- I am happy to report that I have both teams that will rebuild our courts lined up and ready to go when we are ready to move forward (Pentoney Brothers and ATC).
- I've talked at length with ATC and revised the options down to two - dropping one of the original that included rebuilding 4 new tennis courts - which realistically is not an option - everyone wants tennis, pickleball and basketball....
- If we make a decision by the end of February or March, they can rebuild in May or June in time for us all to enjoy them this summer.
- Our next steps are to finalize the option we want to move forward with and how we're going to finance..... I sent a sample survey to the Board for their input and help distributing.

Best!
Chris Peabody

On Fri, Jan 5, 2024 at 10:25 PM Valerie Creason <valerie.creason@gmail.com> wrote:

> Hello Committee Chairs,
>
> It is that time again. :) I trust everyone has been preparing their reports for the coming Board Meeting while staying warm, safe, and toasty. In preparation for the Board meeting, **please send to me your updates on or before Tuesday, January 9th.** This will allow time for distribution and review in advance of the Board meeting.
>
> If you have no updates to report, please be sure to respond to this email letting me know.
>
> Thank you and Happy 2024!
> Valerie Creason
> CMA Secretary

Gmail

Valerie Creason <valerie.creason@gmail.com>

Re: Jan 13th Board Meeting - Committee Monthly Reports/Updates Needed

1 message

Rosemary Bigelow <Rosemary@mygrandmotherslace.com> Mon, Jan 8, 2024 at 4:14 PM
To: Valerie Creason <valerie.creason@gmail.com>
Cc: "John R. Wennersten" <jack@wennersten.org>

The Welcome Committee sent 1 Welcome letter to the new owners of K-17.

Rosemary

On 1/5/2024 10:25 PM, Valerie Creason wrote:

> Hello Committee Chairs,
>
> It is that time again. :) I trust everyone has been preparing their reports for the coming Board Meeting while staying warm, safe, and toasty. In preparation for the Board meeting, **please send to me your updates on or before Tuesday, January 9th.** This will allow time for distribution and review in advance of the Board meeting.
>
> If you have no updates to report, please be sure to respond to this email letting me know.
>
> Thank you and Happy 2024!
> Valerie Creason
> CMA Secretary

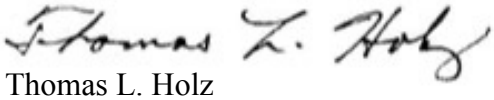
From: CMA BUP TF Chair (Tom Holz)

To: CMA Board of Directors

Subject: CMA BUP TF BOD Update January 6, 2024

- **Task Force**
  - No update.
- **Group 1, Survey:**
  - Tasks complete.
- **Group 2, Draft Rules**:
  - Session to be scheduled for further discussion of counsel opinions and member topics.
- **Group 3, Authorities/Counsel Advice**:
  - Session to be scheduled for discussion of TF comments regarding existing RRRUP comments on “excessive concentration” of business/rental properties and interpretation of counsel opinion on limitations of rentals..
- **Group 4, Resale Cert**:
  - Discussion and BOD approval regarding which commercial provider to use was done at the BOD last meeting. The chosen provider had been non-responsive to CMA representative and the other provider seemed eager.
  - Still considering whether a change to C&Rs is needed or can be handled via other CMA policy document to make use mandatory for all owners.

Respectfully submitted,



Thomas L. Holz
Chair, CMA Business Use of Property Task Force

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting

January 13, 2024, 10:00am

AGENDA

I. Roll Call – Proof of Quorum

II. Approval of Minutes – December 11, 2023

III. Reports of Officers and Directors
   a. President's Report
   b. Vice President's Report
   c. Treasurer's Report
   d. Directors' Reports

IV. Operations Manager Report, Cathy Levey

V. New Business
   a. Dec 30th – South Well waterline break and repair
   b. WVPSC Tariff Review (motion)

VI. Old Business
   a. MNO Main Project – Remaining 310 feet
   b. Lagoon Liner
   c. Pipes to Wetlands
   d. Controlled Burn of the Wetlands
   e. Project List

VII. Owner Forum

VIII. Executive Session (held prior to open session)
   a. Delinquency Report

IX. Adjournment

Next Meeting – February TBD, 2024, time?

Coolfont Mountainside Association – Water & Sewer
Board of Directors Meeting – January 13, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 12/31/23 were provided and covered 100% of the budget year. Income was 101.2% of budgeted amount. Expenses came in lower than expected at 94.4% of budget. However, there may still be a few invoices for 2023 still to be paid.

Capital Improvement and Repair & Replacement Funds are held in a separate account from the operating account.

Accounts

2023 Q3 Billing

- One account is still unpaid. Reminder email was sent on 1/9/24.

2023 Q4 Billing

- Reminder invoices sent to seven accounts on 1/9/24 and notice of delinquent account sent to one customer. Notice sent to one previous owner concerning unpaid final bill. See Delinquency Report for details.

Updates

Updates include details of attached reports as of the end of the previous month.

- Funding from CMA of $4,500.00/mo is transferred into W&S each month for 2024.

December/January:

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (based on IRS business mileage rate).

PSC Tariff Review

- Water/Sewer Committee is working to submit paperwork to PSC to initiate a Tariff Review for water and sewer. We are planning to discuss several topics with the PSC, including – but not limited to – tiered rates, reduced minimum charges, and fees for mailed invoices.
- The Committee requests approval of motion:

Motion to approve the submission of request for Water and Sewer Tariff review to the WV Public Service Commission.

Water and Sewer Operation Report for January 13, 2024 Board Meeting

Training with Chuck Fulton, the new operator, is ongoing. The holidays and a case of the flu delayed testing for the 1-D water operator's certification, but we are optimistic of completion of testing in the next two weeks.

The water operations manager has been reaching out to various contractors to organize/schedule projects for 2024:

1. House meter replacement on the South System is being coordinated between Chuck Fulton and Jeff Rhodes, from WSPSD, with 39 meters to replace. Plans are to complete all 39 this year.
2. I have reached out to the contractor regarding replacement of the 310 feet on MNO main, viewing this project as a priority (with a leak of currently 5 to 6 gpm.) The contractor will contact us, dependent on his schedule and ground and weather conditions.
3. I have not yet coordinated with the excavator and electrician regarding the replacement of the Weinberger Signal Wire but will do so once I have a better idea of when the MNO Water Main project is scheduled.
4. I have reached out to the contractor regarding repair of a water line/drain at the R Reservoir, which has allowed intrusion of roots into one of the three water tanks. Repair must be done prior to cleaning and refurbishing of the Weinberger and R Reservoirs. I am currently remaining in contact with Ryan Lucy, at Southern Corrosion, regarding the cleaning and refurbishing and I am scheduled to meet with the contractor to look at a repair on the line at the R Reservoir, as soon as weather permits.
5. The replacement of the prv on the back wall of the North Pump House remains on the list and will be addressed as time allows.
6. Hookup to water and sewer lines for the house under construction at C-3 is also scheduled for this year and a recent conversation with the building contractor indicates it will be "some time" before hookup is needed.

On December 30, a break in the water line exiting the South Well pump resulted in a drop in the water level at Weinberger Reservoir from 8 feet (full) to 6 feet, where the reservoir with unable to keep up with the demand. Leak location was immediately initiated and a call to Monty Kerns, at WSPSD, to assist with leak location (in a race against time) resulted in his arrival and our finding the leak at the South Well. A call to Dennis Shaffer, our excavator, and John Hobday, plumber, for help resulted in a 45-minute response by both. The conditions were very muddy (because of the leak breaking ground surface) and the work was very delicate because the water line to be repaired was at least a foot below the signal wire, encased in conduit. To avoid any potential damage to the signal wire work was slowly and carefully performed. A repair was

done to a coupler that “T’d” to an old hydrant that had been retired and removed some years ago. Upon completion of the work, I flushed the line thoroughly by way of a drain outside the South Pump House prior to reconnecting to the South Water System for chlorination and distribution. Both Dennis and John opted not to charge us for either an emergency repair or a holiday repair, for reasons I do not fully comprehend. As a result of their efforts the reservoir never reached 5 feet, triggering an alarm call, and the New Year’s guests were never aware that an emergency repair was required.

W&S Operations Report for Wastewater for January 2024 Board Meeting

Projects for 2024:

1. I have reached out to a contractor for two bids on the replacement of the lagoon liner and I am still awaiting a response.
2. The pipes to the wetlands were removed in anticipation of the controlled burn. The pipes were noted to be brittle and broken and will need to be replaced this year. An inventory of the pipes and fittings will be done soon (as weather improves) in coordination with Jeff Rhodes at WSPSD, with pricing to follow.

On January 8, 2024, with the assistance of Craig Deane and Jeff Rhodes and Lionel Monteil, of WSPSD, a controlled burn was done at the wetlands. Participants imagined one big burn engulfing the entire wetlands only to find that the work entailed a slow, tedious process over a 5 and ½ hour period. On a positive note, there was little to no concern of fire escaping the perimeter, and, after much work, the wetlands were successfully burned in entirety, with hopes of fresh, green vegetation and an improved efficacy in the treatment of our wastewater.